

Calendar Line 4

Case Name: *Wilson v. Google LLC*
Case No.: 25CV463465

Disclosure

A judge has a duty to decide any proceeding in which they are not disqualified.

I am required to disclose that included in the diverse portfolio of multiple investment interests held in my family trust are stock shares in the parent company of defendant Google, Alphabet Inc. This trust is entirely managed by an independent financial advisor who makes decisions regarding investment purchases, sales and overall holdings. Though the trust is not a blind trust, I rely entirely upon the expertise of the advisor, and I am not involved in making these investment decision.

I have carefully considered the scope and extent of this interest in the context of being assigned this case, and I have relied upon the discussion and advice provided by the Judicial Ethics Committee of the California Judges Association, particularly Formal Ethics Opinion No. 59. Opinion 59 addresses precisely the issue presented here. I will provide counsel with a copy.

I have concluded I am not disqualified from this case, and I can assure counsel and the parties that I am confident in my ability to be fair and impartial. Although I conclude I am not disqualified, I am required by my ethical responsibilities to make this disclosure.

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Tentative Ruling on Demurrer:

Defendant Google LLC (“Google”) demurs to each of the three causes of action in the First Amended Complaint (“FAC”) of plaintiff Katherine Wilson (“Plaintiff”), which allege violations of the California Invasion of Privacy Act (“CIPA”), Penal Code sections 631, 632, and 635. Google has also filed a Request for Judicial Notice (“RJN”). Having considered the papers submitted and the applicable authorities, the Court rules as follows.

The demurrer to the first cause of action (section 631) and the second cause of action (section 632) is OVERRULED. The demurrer to the third cause of action (section 635) is SUSTAINED WITH LEAVE TO AMEND. Google’s Request for Judicial Notice is GRANTED IN PART and DENIED IN PART as set forth below.

I. Background

Plaintiff alleges that the California Department of Motor Vehicles (“DMV”) embedded Google Analytics and DoubleClick software tags (“the Tags”) throughout its website, including on the pages Californians use to apply for, renew, replace, and check the status of a Disabled Person Parking Placard (“DPP”). (FAC, ¶¶ 2–3, 57–64.) According to the FAC, when a user visited a DMV page, the Tags executed in the user’s browser and caused it to transmit the page’s descriptive URL (which reveals the user’s disability-related activity) together with Google-created identifiers, to Google in real time and before the user’s communication reached the DMV’s servers. (*Id.* at ¶¶ 41–47, 64–78, 84–92.) Plaintiff alleges Google parses and interprets that content contemporaneously and uses it for advertising and analytics. (*Id.* at ¶¶ 26–29, 45–56, 92–94.)

Plaintiff renewed her permanent DPP through the DMV portal in approximately June 2023 and alleges she did not consent to, and was unaware of, the transmission of her communications to Google. (FAC, ¶¶ 13–16, 99.) The FAC further alleges that DMV and disability information is designated confidential or highly restricted under several statutes. (*Id.* at ¶¶ 8, 104.) The action was originally filed in the United States District Court for the Northern District of California and refiled in this Court following dismissal of the sole federal claim.

II. Request for Judicial Notice

Google requests judicial notice of (A) the operative complaint in *Doe I v. Google LLC*, No. 3:23-cv-02431-VC (N.D. Cal.), offered as an “illustrative and comparative” pleading benchmark; and (B)–(C) Google’s own Google Analytics Terms of Service and a Google Analytics Help Center webpage, offered to establish that Google did not intend to receive the challenged information because it directed website operators not to transmit personally identifiable data and to obtain consent. (Google Request for Judicial Notice (“RJN”), pp. 2–5.)

The Court may take judicial notice of the existence of a court record and of the existence and content of a publicly available webpage, but not of the truth of the matters

asserted within such documents or of their proper interpretation. (Evid. Code, section 452, subds. (d), (h); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 456, fn. 9; *Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal.App.4th 97, 113–115 (*Fremont*); *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194.) A hearing on demurrer “may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.” (*Fremont, supra*, 148 Cal.App.4th at p. 114.)

As to Exhibit A, the request is GRANTED only as to the fact that the pleading was filed; the Court does not take notice of the truth of its allegations and does not treat it as a benchmark against which the sufficiency of the FAC is measured. (See RJN, pp. 3–4; Plaintiff’s Opposition to the Request for Judicial Notice (“RJN Opp.”), pp. 2–3.) The adequacy of the FAC is governed by California pleading standards and the allegations of the FAC itself.

As to Exhibits B and C, the request is GRANTED only to the extent that the identified webpages existed in the form submitted and is otherwise DENIED. Google offers these materials to prove that it did not intend to receive the challenged data (RJN, pp. 4–5); this is a use that would require the Court to accept the documents for their truth and to draw a merits inference of Google’s state of mind that is squarely contradicted by the allegations of the FAC. (See FAC, ¶¶ 4, 6–7, 37–66, 92–93, 114; RJN Opp., pp. 3–6.) Whether Google’s stated policies reflected its actual intent and practices, and whether they were honored, are disputed questions of fact not suited to resolution on demurrer. (*Fremont, supra*, 148 Cal.App.4th at pp. 113–115.)

III. Legal Standard

A demurrer tests the legal sufficiency of the pleading. The Court accepts as true all material facts properly pleaded and those subject to reasonable inference and liberally construes the complaint with a view to substantial justice. (Code Civ. Proc., § 452.) The Court does not, however, assume the truth of contentions, deductions, or conclusions of law. (*Rakestraw v. California Physicians’ Service* (2000) 81 Cal.App.4th 39, 43; *Ankeny v. Lockheed Missiles & Space Co.* (1979) 88 Cal.App.3d 531, 537.) A demurrer “is not the appropriate procedure for determining the truth of disputed facts,” and issues turning on a

defendant's state of mind are ordinarily not resolved at the pleading stage. (*Ramsden v. Western Union* (1977) 71 Cal.App.3d 873, 879.)

IV. Discussion

A. First Cause of Action – Penal Code Section 631(a)

Section 631(a) imposes liability on one who, willfully and without consent, reads or attempts to read or learn the contents or meaning of a communication while it is in transit (the “second clause”), and on one who uses information so obtained (the “third clause”). Google contends Plaintiff fails to allege (1) reading while in transit and (2) willfulness, and that the third-clause claim fails derivatively. (Google’s Memorandum of Points and Authorities in Support of Demurrer, filed Feb. 5, 2026 (“Dem.”), pp. 9–15; Plaintiff’s Opposition to the Demurrer, filed June 2, 2026 (“Opp.”), pp. 4–10; Google’s Reply in Support of Demurrer, filed June 26, 2026 (“Reply”), pp. 1–5.)

1. Reading in Transit

The Court acknowledges the developing body of authority holding that CIPA’s second clause requires more than interception or collection because it requires an effort to understand the substantive meaning of the communication while it is in transit. (Dem., pp. 9–13; Reply, pp. 1–3; see, e.g., *Doe v. Eating Recovery Center, LLC* (N.D. Cal. 2025) 806 F.Supp.3d 1109.) Nevertheless, the FAC does not merely parrot the statute. It alleges a specific mechanism: the Tags execute within the user’s browser as the page loads and transmit the descriptive URL and associated identifiers to Google contemporaneously with, and before completion of, the user’s communication with the DMV, and Google parses and interprets that content in real time. (FAC, ¶¶ 41–47, 63–69, 76–78, 84–92; Opp., pp. 4–7.) These allegations are supported by annotated depictions of the network requests at issue. Whether the Tags’ real-time processing constitutes “reading to understand” the communication, as Plaintiff alleges, or merely sorts and categorizes data, as Google contends, presents a disputed question concerning the operation of the technology that cannot be resolved on demurrer. Accepting the FAC’s allegations as true

and drawing reasonable inferences in Plaintiff's favor, Plaintiff has adequately alleged reading while in transit.

2. Willfulness

Plaintiff alleges that Google designed the Tags to operate undetected and to circumvent browser privacy protections, instructed operators to install the Tags on every page, and knew the Tags were assigned to and operating on the DMV website. (FAC, ¶¶ 6–7, 37–38, 64–66, 93; Opp., pp. 7–9.) These allegations support a reasonable inference of willful conduct at the pleading stage. Google's contrary argument (Dem., pp. 13–15; Reply, pp. 3–5) rests principally on its Terms of Service and Help Center page, which (as addressed in Part II) the Court does not accept for their truth or to negate the FAC's allegations of intent. Willfulness is adequately alleged.

Because Plaintiff states a claim under the second clause, the derivative third-clause (use) claim also survives. (Dem., p. 15; Opp., pp. 9–10.) The demurrer to the first cause of action is **OVERRULED**.

B. Second Cause of Action – Penal Code Section 632

Section 632 prohibits the intentional recording of a confidential communication, without consent, by means of an electronic amplifying or recording device. Google contends the Tags are not a “device,” that Plaintiff fails to allege intent, and that the communications were not confidential. (Dem., pp. 16–19; Opp., pp. 10–14; Reply, pp. 5–8.)

1. Device

California appellate authority instructs that CIPA is to be construed in light of the Legislature's recognition that advances in technology produce new means of eavesdropping and has applied section 632 to modern surveillance technology. (Opp., pp. 10–12; *Lyon v. Superior Court* (2021) 61 Cal.App.5th 237, 245–248; *Kight v. CashCall, Inc.* (2011) 200 Cal.App.4th 1377, 1388–1389.) Google's authorities for a categorical rule that software is never a “device” (Dem., pp. 17–18; Reply, pp. 5–7) either construe a different CIPA provision

or are not binding on this Court. At the pleading stage, and consistent with the statute's remedial purpose, the Court concludes the FAC adequately alleges that the Tags are a "device" within the meaning of section 632. Google's argument that section 638.50 separately refers to a "process" does not establish that software cannot also be a "device."

2. Intent

For the reasons stated in Part IV.A, and because intent is a fact question not resolved by judicial notice of Google's own policies, Plaintiff adequately alleges the requisite intent.

3. Confidentiality

Confidentiality under section 632 turns on whether a party had an objectively reasonable expectation that the communication was not being overheard or recorded by a nonparty. (*People v. Superior Court (Smith)* (1969) 70 Cal.2d 123, 130–131, fn. 7.) The communication at issue is not the public display of a placard (see Dem., p. 19; Reply, pp. 7–8), but Plaintiff's online submission of disability-related information to a government agency through a portal designed for legally protected data. Plaintiff alleges she expected that information to remain confined to the DMV. (FAC, ¶¶ 8, 16, 99, 104–105; Opp., pp. 12–14.) Whether that expectation was objectively reasonable is a fact-intensive question that, on these allegations, cannot be resolved against Plaintiff on demurrer.

The demurrer to the second cause of action is OVERRULED.

C. Third Cause of Action – Penal Code Section 635

Section 635 prohibits the manufacture, assembly, sale, advertisement, possession, transportation, importation, or furnishing of "any device which is primarily or exclusively designed or intended for eavesdropping upon the communication of another." The Court need not resolve the disputed question whether section 637.2 confers statutory standing on a plaintiff injured by the use of such a device (Dem., pp. 19–20; Opp., pp. 14–15; Reply, pp. 8–10), because the claim fails on an independent ground.

Section 635 reaches only a device that is “primarily or exclusively” designed or intended for eavesdropping. Here, the FAC’s own allegations describe the Tags as advertising and analytics tools and are premised on Google’s use of the collected data to operate its advertising business. (See, e.g., FAC, ¶¶ 25, 54–55.) Those allegations are incompatible with the conclusory assertion that the Tags are “primarily or exclusively” designed for eavesdropping (*id.* at ¶¶ 158–159), and the Court is not required to accept a conclusion of law that the pleaded facts contradict. Because CIPA carries both criminal and civil consequences, the Court construes the “primarily or exclusively” requirement strictly. (Dem., pp. 20–21; Opp., p. 15; Reply, p. 10.) As presently pleaded, the third cause of action does not state a claim.

Accordingly, the demurrer to the third cause of action is SUSTAINED. Because there is a reasonable possibility that Plaintiff may cure the defect by amendment, and because this claim was added for the first time in the FAC, leave to amend is granted.

V. Disposition

The demurrer to the first cause of action (Penal Code section 631) is OVERRULED.

The demurrer to the second cause of action (Penal Code section 632) is OVERRULED.

The demurrer to the third cause of action (Penal Code section 635) is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff shall file and serve any amended complaint within 20 days of service of the final order. Google shall respond within the time provided by the Code of Civil Procedure.

Defendant shall prepare the order.

A judge has a duty to decide any proceeding in which they are not disqualified.

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Ethics Committee of the California Judges Association, particularly Formal Ethics Opinion No. 59. Opinion 59 addresses precisely the issue presented here. I will provide counsel with a copy.

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Calendar Lines 5 – 6

Case Name: *Ramos et al. v. Branch Metrics, Inc.*
Case No.: 25CV481772

This is a putative class action asserting a sole cause of action under the California Invasion of Privacy Act (“CIPA”), Penal Code section 638.51. Before the Court are the following: (1) Defendant Branch Metrics, Inc.’s (“Branch” or “Defendant”) motion to stay proceedings, or alternatively, to stay discovery; and (2) Defendant’s demurrer to the Complaint.

As discussed below, Defendant’s motion to stay this action is GRANTED. The action is stayed pending the decision of the Court of Appeal, Second Appellate District, in *Variety Media, LLC v. Superior Court* (No. B350578) (“*Variety*”). Because the entire action is stayed, the hearing on Defendant’s demurrer is CONTINUED and the demurrer is not decided at this time. The Court sets a status conference as provided in the Order below.

I. Background

Plaintiffs Marcos Ramos and Brady Petrik (“Plaintiffs”) allege that Branch, a marketing-analytics company, deployed a software “Tracker” (an SDK and website code snippet) on third-party websites and applications (i.e., bleacherreport.com, m.imdb.com, and the IMDb mobile application) that collected and transmitted to Branch users’ IP addresses, device identifiers, and related data without a court order or user consent, in violation of the statute’s prohibition on installing or using a pen register or trap-and-trace device. (Complaint, ¶¶ 2, 28–51, 78–91.)

Branch demurred to the Complaint on May 8, 2026, contending principally that section 638.51 does not apply to internet or website technology and, in the alternative, that Plaintiffs fail to allege that Branch “installed or used” a pen register, that the Tracker is not a “pen register,” and that Plaintiffs allege no cognizable privacy interest. (Dem., pp. 4–15.) On June 10, 2026, Branch moved to stay the action pending the appeal in *Variety* or, alternatively, to stay discovery pending resolution of the demurrer. Plaintiffs opposed both motions on July 28, 2026, and Branch replied on August 5, 2026. No class has been certified and no trial date has been set.